

Court No. - 21

Case :- WRIT - C No. - 29932 of 2021

Petitioner :- Sanjeev Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Shreya Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Learned counsel for the petitioner submits, the entire dues claimed at the stage of the temporary disconnection had been paid by the petitioner on 18.12.2018.

Form - 09 seeking permanent disconnection was submitted on 02.11.2020. Therefore, the present demand of Rs. 5,33,042/- is wholly unfounded.

Learned counsel for the respondent prays for and is granted a week's time to obtain written instructions as to the basis of the present demand, together with computation.

Put up this case as fresh on 24 November 2021.

Order Date :- 16.11.2021

Prakhar

Court No. - 3

Case :- WRIT - C No. - 29932 of 2021

Petitioner :- Sanjeev Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Shreya Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Syed Aftab Husain Rizvi,J.

As prayed, **list/put up** in the additional cause list before the appropriate bench **on 08.12.2021.**

Order Date :- 30.11.2021

NLY

Court No. - 39

Case :- WRIT - C No. - 29932 of 2021

Petitioner :- Sanjeev Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Shreya Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Heard Ms. Shreya Gupta, learned counsel for the petitioner and Sri Ashutosh Dwivedi, learned Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondents and perused the record.

It is sought to be argued by the learned counsel for the petitioner that the petitioner had commercial electricity connection which was billed on 11.05.2018 for an amount of Rs. 45,291/-. The said amount was not paid up till 18.12.2018.

An affidavit dated 29.07.2020 was filed by the petitioner before the competent authority stating therein that the meter got defunct and the electricity connection be permanently disconnected. The meter sealing certification after due inspection was issued on 24.10.2020.

It is argued by the learned counsel for the petitioner that as per the rules, in case of non payment of outstanding bills for a period of six months, there shall be a permanent disconnection. It is further submitted that the petitioner was never billed after 11.05.2018. The contention thus, is that since the petitioner was not billed, it was assumed that the electricity connection had been permanently disconnected on account of non payment of the outstanding bill dated 11.05.2018. The contention, thus, is that the recovery certificate dated 08.10.2021 has been issued by the respondent no. 5 without providing any bill to the petitioner for the period of alleged consumption of electricity.

Considering the submissions of the learned counsel for the petitioner and noticing the facts stated above, we find that as per the own case of the petitioner, permanent disconnection of the electricity was made on 24.10.2020, on the application moved by the petitioner on 29.07.2020. Prior to that, the petitioner may not have been billed but it cannot be argued that there was any deemed permanent disconnection of electricity. For the usage of electricity for the period from 11.05.2018 till 29.07.2020, the petitioner was required to be billed by the department.

The contention of the petitioner that since meter later became defunct and the information was given on 29.07.2020 by means of an affidavit, no electricity charges can be levied from the petitioner, is not sustainable. The reason being that between 11.05.2018 till 29.07.2020, there is no application or affidavit of the petitioner that the permanent disconnection actually took place. There cannot be any automatic permanent disconnection of electricity. The contention of the learned counsel for the petitioner that arrears of electricity for the period of consumption after 11.05.2018 could not have been realized from the petitioner, is liable to be turned up.

However, as to the dispute about computation of the electricity bills charged from the petitioner for the period of consumption from 11.05.2018 till 24.10.2020, i.e. the date of the permanent disconnection, it is open to the petitioner to approach to the Executive Engineer / respondent no. 3 by invoking Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner, thus, is at liberty to assail the recovery certificate on the quantum.

In case, the petitioner files objection by invoking Clause 6.5 of the U.P. Electricity Supply Code, 2005, within a period of two weeks from today along with the copy of this order, the Executive Engineer shall be an obligation to take an expeditious decision by dealing with all the points of objections raised by the petitioner.

For the period of two months from today or till a decision is taken by the Executive Engineer, pursuant to the above direction, whichever is earlier, the recovery citation dated 08.10.2021 shall not be pressed into service. However, in case of default on the part of the petitioner for approaching the Executive Engineer by invoking Clause 6.5 of the U.P. Electricity Supply Code, 2005, it would be open to the respondents to proceed in accordance with law.

Order Date :- 12.9.2022

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